

Complaint Report (CCRB)

CCRB Case No :	201806632	C/V Report Date :	Mon, 08/13/2018 03:31 PM
Complaint Type :	CCRB	Investigator :	Enoch Sowah
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Mon, 08/13/2018 03:31 PM	Mode :	In-person
Incident Date(s) :	Fri, 08/10/2018 7:15 PM		
Place of Occurrence:	[REDACTED]	Precinct:	44
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Summons - disorderly conduct		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Edward McClain	Subject Officer	[REDACTED]	White	163	Physical force - (punched/kicked/kneed) - (F) Unsubstantiated
POM	Edward McClain	Subject Officer	[REDACTED]	White	163	Threat of summons - (A) Unsubstantiated
POM	Edward McClain	Subject Officer	[REDACTED]	White	163	Word - (D) Unsubstantiated
POM	Edward McClain	Subject Officer	[REDACTED]	White	163	Word - (D) Unsubstantiated
POM	Edward McClain	Subject Officer	[REDACTED]	White	163	Word - (D) Unsubstantiated
LT	Paul Gaglio	Subject Officer	[REDACTED]	White	163	Chokehold - (F) Unsubstantiated
POM	Marcello Solano	Subject Officer	[REDACTED]	White	163	Word - (D) Unsubstantiated
POM	Robert Miceli	Witness Officer	[REDACTED]	White	163	
POM	Lanser Montilla	Witness Officer	[REDACTED]	Hispanic	163	
POM	Harry Pell	Witness Officer	[REDACTED]	White	163	

Initial Complaint Narrative

On August 13, 2018, [REDACTED] filed this walk-in complaint with the CCRB: On August 10, 2018, at approximately 7:15 p.m., [REDACTED] was standing at the corner of 161st Street and River Avenue in the Bronx, waiting for his son so they could go watch a New York Yankees game. PO Edward McClain and approximately four plainclothes officers approached. PO McClain pointed at [REDACTED] and said to other officers, "Hey, that's my friend the asshole." [REDACTED] told PO McClain that he did not want to be bothered and asked to be left alone. PO McClain said to [REDACTED] "Don't fucking tell me what to do. I do want I fucking want on this street." PO McClain threatened to issue [REDACTED] a summons if he did not leave the location. The officers then walked away. Approximately five minutes later, PO McClain and the four unidentified officers returned. PO McClain ordered [REDACTED] to produce his identification. [REDACTED] complied. PO McClain began to issue [REDACTED] a summons. [REDACTED] took out his cell phone and began to record the officers. PO McClain instructed the other officers to arrest [REDACTED]. PO2 and PO3 grabbed [REDACTED]'s arms, while PO4 took [REDACTED]'s phone and stopped the recording. PO5 placed his hands around [REDACTED]'s neck, but immediately removed his hands when [REDACTED] yelled, "Why are you trying to choke me?" [REDACTED] was handcuffed and transported to the stationhouse attached to Yankee Stadium, where he was lodged in a holding cell. PO McClain ordered [REDACTED] to remove his shoes. [REDACTED] refused because he did not want to walk barefoot and informed PO McClain that he had surgery on his foot. PO McClain called [REDACTED] an "asshole" and kicked [REDACTED]'s right ankle approximately three times. PO McClain left the cell, but returned approximately two hours later and together with PO2, transported [REDACTED] to Manhattan Central Booking for allegedly having open warrants. En route to Central Booking, PO McClain and PO2 repeatedly called [REDACTED] an "asshole" and used other profanities against [REDACTED] which he did not recall. [REDACTED] said his warrants were dismissed and he was released from Central Booking. He was issued two disorderly conduct summonses by PO McClain.

Witness

Name of Witness:

Address:

Contacts:

Gender :

Ethnicity:

Date of Birth :

Name of Witness:

Address:

Contacts:

Gender :

Ethnicity:

Date of Birth :
